

23STCV28298 23STCV28298

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Case Number: 23STCV28298 Hearing Date: July 29, 2026 Dept: 408

Plaintiff Tesoro Refining & Marketing Company

LLC's Motion for Attorney's Fees and Costs is GRANTED

in part and DENIED in part. Fees and Costs are AWARDED, in favor of Plaintiff

and against Defendants, in the reduced amount

of \$84,450.00.

I.

BACKGROUND

On November 17, 2023, Plaintiff Tesoro Refining

& Marketing Company LLC ("Plaintiff") filed a complaint against Defendants

Slauson Gas Station Inc. ("Slauson") and Hooman M. Nissani ("Nissani",

collectively "Defendants") alleging causes of action for:

1. Breach of Contract;

2. Unjust Enrichment/Quantum

Meruit; and

3. Breach of Guaranty

Agreement.

On May 14, 2024, the court granted Nissani's Motion

to Quash Summons.

On May 21, 2024, Slauson filed an answer to

Plaintiff's complaint.

On July 30, 2024, Nissani filed an answer to Plaintiff's complaint.

On January 21, 2026, the court granted Plaintiff's Motion for Summary Judgment.

On April 21, 2026, Judgment was entered in favor of Plaintiff and against Slauson as to the first and second cause of action, and against Nissani for the third cause of action in the amount of \$449,470.40, jointly and severally, plus attorney's fees and costs in an amount to be determined by motion.

On May 11, 2026, Plaintiff filed a Memorandum of Costs.

On June 22, 2026, Plaintiff filed this Motion for Attorney's Fees and Costs. On July 15, 2026, Defendants filed an opposition. As of July 22, 2026, no reply has been filed.

II.

LEGAL STANDARD

A

prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.)

III.

DISCUSSION

1.

Parties'
Arguments

Plaintiff

moves the court to award \$ 120,937.50, comprised of \$ \$116,187.50 in attorney's

fees, plus \$4,750.00 for fees incurred in connection with this motion. (Motion, at pp. 3-4; Perez Decl., ¶¶ 6-8.)

In
opposition, Defendants dispute the reasonableness of the attorney's fees requested
based on the simple nature of the action. (Opp., at p. 3.) Defendants further
argue that there are inconsistencies in the billing records presented in
support of the request warranting a reduction in the award. (Ibid.)

2.
Evidentiary
Objections

Defendants' evidentiary objections filed in opposition are
overruled.

3.
Authority
for Fees & Prevailing Party

a.
Legal
Standard

A prevailing party is entitled to
recover costs, which can include attorney's fees, as a matter of right. (Code
Civ. Proc., §§ 1032, subd. (a)(4); 1033.5, subd. (a)(10).) This right may arise
out of contract, statute or law. (Code Civ. Proc., § 1033.5, subd.
(a)(10).) Additionally, a party prevailing on an action on a contract is
entitled to attorney fees if the contract contains an attorney's fees
provision. (Civ. Code, § 1717, subd. (a).)

b. Discussion

On April 21, 2026, Judgment was entered in favor of Plaintiff and against Defendants in the
amount of \$449,470.40, jointly and severally, plus attorney's fees and
costs. (Motion, at pp. 4-5.)

As such, Plaintiff is the prevailing
party and entitled to recover its reasonable attorney's fees and costs.

4.

Method
of Calculation for Fees

a.

Legal
Standard

In

determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

b.

Discussion

Considering

that neither party proposes a different method for calculating fees, the court uses the lodestar adjustment method.

5.

Reasonableness
of the Fees Claimed

a.

Reasonableness
of the Hourly Rates

i.

Legal
Standard

“The

courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437 [citations omitted].)

ii.

Discussion

Plaintiff's

counsel claims the following hourly rates: (1) \$525.00 per hour for Counsel Phillip Allan Trajan Perez; (2) \$395.00 per hour for Counsel Benjamin Tarczy; (3) \$395.00 per hour for Counsel Lorien Giles; (4) \$335.00 per hour for Counsel Jackson Tann; and (5) \$285.00 per hour for Counsel Brett Palmer. (Motion, at p. 6; Perez Decl., ¶¶ 10-12, Exh. 3.)

After considering the information provided, the court finds that the appropriate hourly rate for (1) Counsel Phillip Allan Trajan Perez is \$500.00 per hour; (2) Counsel Benjamin Tarczy is \$350.00 per hour; (3) Counsel Lorien Giles is \$300.00 per hour; (4) Counsel Jackson Tann is \$200.00 per hour; and (5) Counsel Brett Palmer is \$200 per hour consistent with Counsel's level of experience.

b.

Reasonableness

of the Number of Hours

i.

Legal

Standard

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time

expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [cleaned up].)

ii.

Discussion

Plaintiff's

counsel claims the following hours were incurred: (1) 2.9 hours by Counsel Phillip Allan Trajan Perez; (2) 135.8 hours by Counsel Benjamin Tarezy; (3) 9.7 hours by Counsel Lorien Giles; (4) 118.3 hours by Counsel Jackson Tann; and (5) 40.7 hours by Counsel Brett Palmer in litigating the instant action. (Perez Decl., ¶¶ 10-12, Exh. 3.)

In addition, Counsel anticipates 15.0 hours of associate time, $\$285.00 \times 10 = \$2,850.00$, and 5.0 hours of partner time, $\$475.00 \times 4 = \$1,900.00$, for a total of $\$4,750.00$ in connection with this motion. (Id., ¶ 7.) The court grant 5.0 hours in compensation for Counsel's time spent in connection with this motion due to its simple nature at an hourly rate of $\$200.00$ per hour for an additional total recovery of $\$1,000.00$. The court will also strike 1.2 hours from Counsel Brett Palmer already included in the billing records for time spent related to this motion. (Id., ¶ 12, Exh. 3, at p. 13.)

The court notes that the billing records provided also demonstrate that 22.5 hours were incurred by Paralegal Hollie Tice at an hourly rate of $\$265.00$ per hour. (Id., ¶¶ 10-12, Exh. 3.) However, the court finds that attorney's fees should not be awarded for services provided by the paralegal staff. (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Nevertheless, the declaration and billing records provided by Plaintiff's counsel are sufficient to meet the burden of proving the reasonableness of the claimed fees in terms of amounts and tasks. To satisfy this burden, evidence and

descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.) Plaintiff's counsel's billing records reflect the actual time and descriptions of services performed in connection with litigating this case. Although the submission of such detailed time records is not necessary under California law, if submitted, such records "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

Accordingly,

the court grants Plaintiff's requested attorney's fees in the reduced amount of \$84,450.00 comprised of (1) 2.9 hours by Counsel Phillip Allan Trajan Perez; (2) 135.8 hours by Counsel Benjamin Tarezy; (3) 9.7 hours by Counsel Lorien Giles; (4) 118.3 hours by Counsel Jackson Tann; and (5) 39.5 hours by Counsel Brett Palmer in litigating the instant action.at the hourly rate established above, plus \$1,000.00 for fees incurred in connection with this motion.

IV.

CONCLUSION

Plaintiff Tesoro Refining & Marketing Company
LLC's Motion for Attorney's Fees and Costs is GRANTED
in part and DENIED in part. Fees and Costs are AWARDED, in favor of Plaintiff
and against Defendants, in the reduced amount
of \$84,450.00.